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CASE #	CASE NAME	HEARING NAME
CVPS2509200	NIEBLA ARAGON VS SEBBY	DEMURRER ON 1ST AMENDED COMPLAINT OF JAIME NIEBLA ARAGON AS TO CAUSE(S) OF ACTION BY LYNDSIE K. SEBBY, KELSEY M. STACY, JEFFREY K JENSEN

Tentative Ruling: Overruled.

Moving Defendants to file their answer to operative 1st Amended Complaint within 20 days of this order becoming final.

Responding Plaintiff to provide notice pursuant to CCP 1019.5.

Plaintiff Jaime Niebla Aragon (“Jaime”) and minor plaintiffs Bryan Aragon Ramirez, Christian Aragon Ramirez, Carla Aragon Ramirez, and Pamela Aragon Ramirez, by and through their guardian ad litem, Claudia Judith Ramirez Romero (collectively, “Plaintiffs”) bring this wrongful death action against Defendants Lyndsie K. Sebbby, Kelsey M. Stacy, Jeffrey K. Jensen as Trustee of the Jeffrey K. Jensen Family Trust, and Susan L. Jensen as Trustee of the Susan L. Jensen Family Trust (“Defendants”).

In the First Amended Complaint (“FAC”), Plaintiffs allege that Jaime is the nephew, and minor Plaintiffs are the children and lawful heirs of, Decedent Jose Enrique Aragon Trejo (“Decedent”). On April 30, 2024, Decedent and Jaime were performing insulation installation in the attic of real property (“Property”) owned by Defendants. While doing so, Decedent came into contact with exposed energized electrical wiring and/or metal brackets that acted as a concealed conduit for the same, which Plaintiffs allege constituted a dangerous condition. As a result of such contact, Decedent was grievously wounded, unresponsive, and ultimately pronounced dead. Plaintiffs allege that Jaime observed the incident and was electrocuted himself when he checked upon Decedent and came into contact with Decedent, the exposed energized wires, and/or the metal brackets.

On November 26, 2025, Plaintiffs filed a Complaint against Defendants. The operative complaint is the FAC, which Plaintiffs filed against Defendants on April 30, 2026, asserting causes of action for: (1) general negligence; (2) premises liability; (3) wrongful death (C.C.P. § 377.60); and (4) negligent infliction of emotional distress.

Defendants demur to the FAC and each cause of action for failure to state sufficient facts to constitute a cause of action under the *Privette* doctrine.

In opposition, Plaintiffs argues that the *Privette* doctrine does not bar claims of negligence for failing to discover, correct, or warn of a dangerous condition.

Request for Judicial Notice (RJN)

Defendants request judicial notice of the docket in Jaime’s Workers’ Compensation case WCAB No. 8DJ19222641 (Request for Judicial Notice [“RJN”], Exh. A), Decedent’s employee earnings records (RJN, Exh. B), and Jaime’s earning records (RJN, Exh. C.) Plaintiffs object to Defendants’ requests for judicial notice, contending that they are irrelevant and lack foundation.

Defendants' requests for judicial notice of Exhibits A through C are denied because the *Privette* doctrine does not apply, thereby rendering the requests for judicial notice irrelevant.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Kitleman* (1994) 8 Cal.4th 666, 672.)

A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defects can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Plaintiffs assert four causes of action for: (1) negligence; (2) premises liability; (3) wrongful death; and (4) negligent infliction of emotional distress ("NIED"). As noted below, each cause of action is premised upon the tort of negligence.

"In order to state a cause of action for negligence, the complaint must allege facts sufficient to show a legal duty on the part of the defendant to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury." (*Bellah v. Greenson* (1978) 81 Cal.App.3d 614, 619.)

Premises liability is a form of negligence. Accordingly, the elements of a claim for injuries suffered by an invitee due to a dangerous condition on the premises (whether natural or artificial) are: (1) duty, (2) breach, (3) causation, and (4) damages. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205.) Concerning the elements of duty and breach, a property owner has a duty to exercise ordinary care in using or maintaining his or her property to avoid exposing others to an unreasonable risk of injury; the failure to fulfill this duty is negligence. (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156.)

A cause of action for wrongful death is a statutory claim that compensates specified heirs of the decedent for losses suffered as a result of a decedent's death. (C.C.P. §§ 377.60-377.62; *LAOSD Asbestos Cases* (2018) 28 Cal.App.5th 862, 872.) The elements of a wrongful death claim are: (1) a tort (negligence or other wrongful act); (2) resulting death of another person; and (3) damages, consisting of the pecuniary loss suffered by the heirs. (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968; *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1263.)

There is no tort of negligent infliction of emotional distress; instead, it is a form of negligence. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 796 fn. 4.) The elements of negligent infliction of emotional distress are: (1) legal duty to use due care; (2) breach of such legal duty; (3) damage or injury; and (4) cause of the resulting damage or injury. (*Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129.)

Defendants argue that Plaintiffs fail to state a cause of action as to each of their negligence and negligence-related claims under the *Privette* doctrine. However, Defendants' argument extends beyond the scope of a demurrer, as the issues of *Privette* have usually been decided on summary judgment.

The *Privette* doctrine states that generally, a person who hired an independent contractor is generally not liable to an employee of the independent contractor when they are injured on the job. (*Privette v. Superior Court* (1993) 5 Cal.4th 689, 693.) However, there are a multitude of exceptions to the general rule. (*Secci v. United Independent Taxi Drivers, Inc.* (2017) 8 Cal.App.5th 846, 859.) One exception is where a landowner fails to disclose a concealed hazard to the contractor. (*Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 674.) Another exception exists where a hirer who retains control of any part of an independent contractor's work may be liable for physical harm to others caused by the failure to exercise that control with reasonable care. (*Hooker v. Department of Transp.* (2002) 27 Cal.4th 198, 206.) Tort liability will be imposed on the hirer if the hirer exercised control that affirmatively contributed to the injury of the contractor's employee. (*Id.* at 210-211.)

Here, Plaintiffs allege that "Defendants negligently, carelessly, and recklessly maintained the premises in a dangerous and unsafe condition by allowing a dangerous condition to exist on the premises – exposed, energized electrical wiring and/or metal brackets operating as concealed conduits," and "knew, or in the exercise of reasonable care should have known, of the dangerous condition and failed to remedy it or warn persons lawfully on the property." (FAC, ¶ 39-40.) Plaintiffs further allege that Defendants "retained control over safety conditions on their respective property" and "either create[ed] work conditions that were inherently unsafe for those performing insulation installation at The Subject Property, and/or [failed] to create, modify, communicate, impose, and/or enforce adequate safety measures for such work." (FAC, ¶ 25.) Because the allegations in the FAC support the existence of several exceptions to the *Privette* doctrine, Defendant has not demonstrated that *Privette* applies on demurrer.

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CASE #	CASE NAME	HEARING NAME
CVPS2601027	CONCEPT IN TIME INTERVAL OWNERS ASSOCIATION VS ONWERS 1-162	MOTION FOR LEAVE TO INTERVENE BY VILLA MYKONOS, LLC

Tentative Ruling: Granted.

No opposition filed.

Moving party, Villa Mykonos, LLC is granted leave to intervene and must file their proposed Complaint in Intervention within 5 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.